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Case Number: 20STCV37014 Hearing Date: July 17, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 17, 2026

Case Name: Esparza v. Conagra Brands, Inc., et al.

Case No.: 20STCV37014

Matter: (1) Motion for JNOV

(2) Motion for New Trial

(3) Motion for Trial on Punitive Damages

Ruling: The Motions are denied.

Conagra to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Roland Esparza brought this action against more than twenty-five entities, including Defendant Conagra Brands, Inc. ("Conagra"), alleging he developed bronchiolitis obliterans from exposure to diacetyl in butter-flavored cooking spray. Following a trial, the jury returned a verdict in Plaintiff's favor on theories of both strict liability and negligence, awarding \$25 million in non-economic damages and \$0 in economic damages. The jury assigned 100 percent responsibility to Conagra. The Court granted a nonsuit as to punitive damages.

Conagra now seeks a judgment notwithstanding the verdict (“JNOV”) or a new trial. Meanwhile, Plaintiff seeks to vacate the nonsuit as to punitive damages as legal error.

JNOV

The party against whom a verdict has been rendered may move the court for judgment notwithstanding the verdict, and the court shall grant the motion “whenever a motion for directed verdict for the aggrieved party should have been granted had a previous motion been made.” (Code Civ. Proc. § 629(a).) The purpose of such a motion is to challenge whether the opposing party’s evidence was sufficient to prove the claims or defenses asserted and embodied by the jury’s verdict. (Hauter v. Zogarts (1975) 14 Cal.3d 104, 110.)

In ruling on a motion for judgment notwithstanding the verdict, the court does not weigh the evidence or determine the credibility of witnesses. (Hauter, supra, 14 Cal.3d at p. 110.) In other words, the party in whose favor the verdict was rendered is “entitled to the benefit of every favorable inference which may reasonably be drawn from the evidence and to have all conflicts in the evidence resolved in his favor.” (Castro v. State of California (1981) 114 Cal.App.3d 503, 507.) “A motion for judgment notwithstanding the verdict may be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support.” (Sweatman v. Department of Veterans Affairs (2001) 25 Cal.4th 62, 68.)

Statute of Limitations

Defendant argues that Plaintiff’s action, filed in September 2020, is barred by the two-year toxic-exposure limitations period under Code of Civil Procedure section 340.8 because Plaintiff experienced respiratory symptoms as early as July 2017.

Under the discovery rule, the clock begins to run only when a plaintiff suspects, or reasonably should suspect, that their injury was caused by someone’s wrongdoing (Jolly v. Eli Lilly & Co. (1988) 44 Cal.3d 1103, 1110–1111). The onset of generic or ambiguous medical symptoms does not establish inquiry notice of a highly specific toxic exposure as a matter of law (Nelson v. Indevus Pharmaceuticals, Inc. (2006) 142 Cal.App.4th 1202, 1207–1208). Because conflicting inferences could be drawn regarding when a reasonable person in Plaintiff’s position would suspect a wrongful act caused an end-stage lung disease, the issue was properly left to the jury. Substantial evidence supports the jury’s finding that the action was timely.

Causation

Defendant further argues that Plaintiff failed to offer substantial evidence linking consumer use of PAM to the development of BO, pointing specifically to a lack of a quantified breathing-zone dose or precise exposure metric modeling.

Under California law, a plaintiff is not required to reconstruct an exact numerical dose with mathematical certainty to establish toxic exposure causation, provided there is reliable circumstantial and expert evidence of a significant exposure level (Garner v. BNSF Railway Co. (2024) 98 Cal.App.5th 660, 686–688). The trial record contains substantial evidence of exposure. Plaintiff testified to a 20-to-30-year history of daily, multi-spray use of aerosolized PAM within confined, poorly ventilated living spaces. Plaintiff’s experts testified that diacetyl levels in the product measured as high as 85 ppm—far exceeding trace natural levels—and that aerosolization and heating significantly increase volatility. This constitutes substantial evidence upon which a reasonable jury could find causation.

Failure to Warn

Defendant contends it is entitled to judgment as a matter of law because the existing regulatory framework and scientific consensus at the time of manufacture focused strictly on high-scale, industrial exposure rather than ordinary home consumer use. Conagra further argues that Plaintiff's characterization of its internal plant safety protocols was misleading.

The Court finds that Plaintiff presented substantial evidence to support the strict liability failure to warn claim. Under California law, a manufacturer is strictly liable if it fails to warn consumers of a product risk that was known or knowable in light of generally recognized scientific knowledge at the time of distribution (*Anderson v. Owens-Corning Fiberglas Corp.* (1991) 53 Cal.3d 987, 1002).

Here, the trial record contains internal corporate records showing that by 2004, Conagra implemented mandatory protection protocols for its own plant employees handling or actively spraying the product. While Defendant argues that workplace industrial environments are factually distinct from home kitchens, this evidence was not admitted to establish identical exposure levels, but rather to show corporate knowledge. The internal records constitute substantial evidence that Conagra was explicitly aware that aerosolizing and heating this specific chemical formulation carried inherent respiratory risks. Despite this knowledge, Conagra continued to mass-market butter-flavored PAM to consumers for the exact same physical action—spraying the product into heated pans—without any corresponding inhalation warning. Whether that risk extended to a heavy consumer user was a question of fact properly left to, and resolved by, the jury.

For all these reasons, the Motion for JNOV is denied.

New Trial

Code of Civil Procedure section 657 provides the following grounds for granting a new trial motion: (1) "Irregularity in the proceedings"; (2) "Misconduct of the jury"; (3) "Accident or surprise"; (4) "Newly discovered evidence"; (5) "Excessive or inadequate damages"; (6) "Insufficiency of the evidence"; and (7) "Error in law."

Expert Evidence

Defendant argues a new trial is warranted because the Court improperly admitted the causation opinions of Drs. Pue, Chang, and Harrison, asserting they were speculative under *Sargon Enterprises, Inc. v. University of Southern California* (2012) 55 Cal.4th 747 because they lacked a formalized exposure reconstruction.

The Court stands by its evidentiary rulings. The record shows that Plaintiff's experts did not rely on mere speculation; rather, they employed standard, accepted clinical methodologies, reviewed product chemical formulations, cross-referenced peer-reviewed toxicological literature, and performed a rigorous differential diagnosis to rule out confounding causes. Defendant's challenges to the lack of precise indoor air sampling went to the weight of the expert testimony, which Conagra fully explored during cross-examination, rather than its threshold admissibility.

Misconduct

Defendant alleges a pattern of pervasive attorney misconduct, pointing to questions regarding alternate exposures, corporate documents, and corporate bias, as well as a specific misstatement of the discovery rule during closing rebuttal.

The Court has independently evaluated the specific instances of alleged misconduct cited by Defendant. During closing rebuttal, Plaintiff's counsel told the jury the discovery clock did not run until Plaintiff suspected "something in the PAM" specifically caused his disease. Strictly speaking, a plaintiff does not need to identify the exact brand name or chemical compound to trigger the statute (*Jolly, supra*, 44 Cal.3d at p. 1110). However, the Court immediately sustained Defendant's objection, Plaintiff's counsel pivoted, and the jury was formally instructed that statements of counsel are not evidence.

The remainder of Defendant's challenges involve aggressive cross-examination and lines of inquiry that were effectively managed through the contemporaneous sustaining of objections and standard curative instructions. In the context of this hard-fought, multi-week trial, the conduct of Plaintiff's counsel did not rise to the level of pervasive, prejudicial misconduct necessary to cause a miscarriage of justice or warrant a new trial (*Cassim v. Allstate Ins. Co.* (2004) 33 Cal.4th 780, 800–802).

Jury Procedures

Defendant also asserts a procedural defect under Code of Civil Procedure section 657(1) because the Court did not instruct the jury to begin deliberations entirely "anew" after initial polling revealed a procedural misunderstanding regarding voting sequences.

This argument misapplies the relevant rule. The requirement to instruct an intact panel to deliberate "anew" is triggered when an alternate juror is substituted mid-stream, altering the fundamental composition of the body (*Giesel v. Dart Industries, Inc.* (1979) 23 Cal.3d 578). Here, the original twelve jurors remained intact. The Court properly followed Code of Civil Procedure sections 618 and 619 by clarifying the mechanics of the special verdict form, answering their procedural question, and directing them to resume work. Defendant failed to request a specific "anew" instruction at the time and cannot establish prejudice, as the final special verdict questions met the nine-juror threshold. No structural or prejudicial error occurred.

Excessive Damages

Finally, Conagra claims the \$25,000,000 noneconomic damages award is excessive, arguing it represents passion or prejudice and fails to discount unrelated pre-existing back conditions.

The Court's independent review of the record confirms that the damages are firmly anchored to the evidence. The jury heard extensive, credible evidence that Plaintiff suffers from a progressive, terminal, and agonizing pulmonary disease. He relies on round-the-clock supplemental oxygen, faces the permanent threat of suffocation, and must undergo a high-risk double lung transplant simply to survive. The medical evidence and expert testimony regarding the terminal, progressive nature of Plaintiff's diagnosis and the immediate necessity of a double-lung transplant presented a compelling basis for the jury to find that Plaintiff faces a severely compressed life expectancy as a direct result of this exposure. The calculation of noneconomic damages is an inherently subjective determination left to the sound discretion of the jury. The award is commensurate with the profound, life-altering nature of the respiratory injury, and Defendant failed to establish any medically supported basis to apportion these distinct pulmonary damages to a pre-existing spinal condition.

For all these reasons, the Motion for New Trial is denied.

Punitive Damages

The Motion for a Trial on Punitive Damages is denied due to the Court finding a lack of evidence to support malice, oppression, or fraud by an officer, director, or managing agent. (Civ. Code § 3294.)

Conagra to give notice.